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5 May 1930, Inalienable Rights

Once Bhagat Singh was arrested and taken into custody on 8 April 1929, his pursuit of the techniques of camouflage, disinformation, and imitation to avoid detection by the colonial authorities was quickly vindicated. For justice was a scarce commodity in the court of the 30th viceroy and governor-general of India, Lord Irwin, who had been appointed two years earlier on 3 April 1926, during the most tempestuous time in the politics of India. And it was Lord Irwin's court. It was he who had passed an ordinance and created an impromptu makeshift tribunal to try Bhagat Singh and his co-accused when they were already subject to legal proceedings in a regular court before a special magistrate and for close to a year. Given the deliberate setting up of a system of trial outside the regular judicial structure, neither the accused nor their lawyers were in any doubt that justice was the last thing Lord Irwin intended to deliver through flagrant institutional innovation. Due process and natural justice would be sacrificed to the political expediency of seeing these men hang. Which is why, since the trial before the special tribunal did not comply with the essential requirements of the rule of law, from the outset there was a challenge to its jurisdiction that it could not try the accused.

This is why in their letter to the commissioners dated 5 May 1930, the lawyers for five of the young men under trial wrote, 'We do not propose to take any part in the proceedings of this case because we do not recognize this Govt to be based on justice as established by law.' Further, they wrote, 'Since this Govt is an utter negation of these principles its very existence is not justifiable.' Their attack was not just on the tribunal but on the government which enabled such a tribunal to be set up to subvert the